ELECTORAL PROCESS AND RESULTS IN BRIEF

Despite low expectations based on historical experience and criticism in the period prior to 8 November 2015, the Union Election Commission (UEC) enabled a positive election-day experience for most of Myanmar's voters, and left little doubt that the will of the electorate was respected. The voter list, digitized and publicized for public scrutiny — which had been criticized for inconsistencies and omissions in earlier versions — stood its test on election day. More than a year prior to the polls the UEC engaged in unprecedented stakeholder meetings with political parties and CSOs. It introduced new integrity measures such as transparent ballot boxes, numbered seals, and indelible ink to create better safeguards in polling procedures, and supported the dissemination of voter education materials, including in the mass media and by new communication technologies. International and national observers were deployed in large numbers, all across the country and throughout the pre-election and election day period, with limitations only in conflict-affected areas and around military installations. Observers largely agreed in their assessments of an overall positive election day, while also sharing concerns about undemocratic restrictions in the electoral legal framework.[2]

The National League for Democracy (NLD) won an historic victory, similar to its 1990 results. It now dominates the upper and the lower houses of the Pyidaungsu Hluttaw, the legislature at union level, in such a way that it can nominate two vice-presidents and select the president; and can oppose, propose, or pass any law without consent of the opposition — with the exception of changes to the constitution which are regulated under chapter 12. Section 436(a), in particular, requires the consent of military members of parliament who still hold twenty-five per cent of the Pyidaungsu Hluttaw. The NLD was also successful in the race for most region and state legislatures, winning the majority in all regions (two with 100 per cent of the elected seats) and in the three eastern ethnic states (Mon, Kayah, Kayin). The winning party also returned fifty per cent of the total number of seats, that is, including military representatives' seats, for the Chin State Hluttaw, and around forty-nine per cent in Kachin State. The Arakan National Party (ANP) was the most successful party in Rakhine State (see Than Tun, this volume). The large Shan State holds the only legislature where the Union Solidarity and Development Party (USDP) remains the strongest single political party, followed by the Shan